

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	17-11-2025 18:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	17-11-2025 18:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Gujarat
विभाग का नाम / Department Name	Health & Family Welfare Department Gujarat
संगठन का नाम / Organisation Name	Gujarat Medical Services Corporation Limited (gmscl)
कार्यालय का नाम / Office Name	Gmscl
कुल मात्रा / Total Quantity	5064
वस्तु श्रेणी / Item Category	Centrifuge Tubes (V2) (Q3)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) / Minimum Average Annual Turnover of the bidder (For 3 Years)	13 Lakh (s)
मूल उपकरण निर्माता का औसत टर्नओवर (गत 3 वर्षों का) / OEM Average Turnover (Last 3 Years)	13 Lakh (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Exemption for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Exemption for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Past Performance, Bidder Turnover, Certificate (Requested in ATC), OEM Authorization Certificate, OEM Annual Turnover, Additional Doc 1 (Requested in ATC), Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है / Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)

बिड विवरण/Bid Details	
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
विगत प्रदर्शन / Past Performance	10 %
बिड से रिवर्स नीलामी सक्रिय किया/ Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/ RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/ Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय / Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/ Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
अनुमानित बिड मूल्य / Estimated Bid Value	2532000
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	75960

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00

ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).

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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने है। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

Managing Director

Gujarat Medical Services Corporation Limited (GMSCL), Block no.14, Dr. Jivraj Mehta Bhavan, Sector-10, Gandhinagar-382010.

(Shree Dignat Brahmbhatt, Ias)

विभाजन/Splitting

विभाजन/Splitting Applied	Yes
बोलीदाताओं की अधिकतम संख्या, जिनके बीच ऑर्डर विभाजित किया जा सकता है। / Maximum No. Of Bidders Amongst Which Order May Be Split	2
विभाजन मानदंड इस बात पर आधारित है कि कौन सी क्वांटिटी को वितरित किया जाएगा / Split Criteria based on which quantity will be distributed	70:30

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में हो / Purchase Preference to MSE OEMs available upto price within $L1+X\%$	10
सूक्ष्म और लघु उद्यम को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MSE purchase preference	70

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
2. OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
3. Purchase preference to Micro and Small Enterprises (MSEs) from the State of Bid Inviting Authority : Purchase preference will be given to MSEs as Micro and Small Enterprises from the State of Bid inviting Authority. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service. If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 10% of margin of purchase preference /price band defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded for percentage of 70 % of total quantity as defined/ decided in relevant policy.
4. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.
5. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 10% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.
6. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:
 - i. If number of technically qualified bidders are only 2 or 3.
 - ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
 - iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
 - iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
 - v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

Centrifuge Tubes (V2) (5064 packet)

तकनीकी विशिष्टियाँ /Technical Specifications

* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
GENERIC	Material of Tube	Plastic
	Shape of Bottom of tube	Conical
	Type of Cap	Screw Cap
	Shape of Cap top	Flat
	Availability of Graduation in Centrifuge Tube	Yes

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
PERFORMANCE	Centrifugation (Max RCF)	Up to 3000 Xg
	Capacity (ml)	15
FUNCTIONAL FEATURES	Are tips Sterile?	Yes
	Are tips Autoclavable?	Yes
PACKAGING	Packaging Medium Type	Bag

Additional Specification Parameters - Centrifuge Tubes (V2) (5064 packet)

Specification Parameter Name	Bid Requirement (Allowed Values)
Additional Specification:	Sterile

* Bidders offering must also comply with the additional specification parameters mentioned above.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Makwana Mukeshbhai Manubhai	365601,GMSCL-Ware House_Amreli, Near. Civil Hospital, Amreli.	255	330
2	Joshi Mitesh Amrutlal	370001,GMSCL-Ware House_Bhuj, RTO Circle, In front of Military Gate, Bhuj.	193	330
3	Dhinga Lavindrasinh Harisinh	389151,GMSCL-Ware House_Dahod, Jhalod National Highway, 113-Road, Dahod.	118	330
4	Dataniya Chiragkumar	383010,GMSCL-Ware House_Himatnagar State Highway, Moje- Hasalpur, Himatnagar.	130	330
5	Dholariya Ankurkumar Dhirajbhai	361001,GMSCL-Ware House_Jamnagar, Mental Hospital Campus, Jamnagar.	86	330
6	Katariya Mehl Babubhai	382330,GMSCL-Ware House_Naroda, Plot No. 68-69, G.I.D.C, Naroda Phase - 2, Central Workshop,Naroda, Dist.- Ahmedabad.	105	330
7	Raval Maulikkumar Rasiklal	384265,GMSCL-Ware House_Patan, General Hospital Campus, Patan.	1373	330

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
8	Kubavat Manish Janakray	360001,GMSCl-Ware House_Rajkot, Morbi Road, Near Railway Fatak, Rajkot	632	330
9	Santosh Ramchandra Pawar	395001,GMSCl-Ware House_Surat, Near Civil Hospital Campus, Majura Gate, Surat.	612	330
10	Damor Jigarkumar Somjibhai	390019,GMSCl-Ware House_Vadodara, Behind Ansuya Leprosy Hospital, Azwa road, Vadodara.	1373	330
11	Chaudhari Pratikshaben Dharmubhai	396007,GMSCl-Ware House_Valsad, Block No.66A, Village, Atak Pardi, Valsad.	187	330

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3. Generic

Data Sheet of the product(s) offered in the bid, are to be uploaded along with the bid documents. Buyers can match and verify the Data Sheet with the product specifications offered. In case of any unexplained mismatch of technical parameters, the bid is liable for rejection.

4. Generic

The seller is required to print logo as per buyer's requirement.

5. Generic

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- The Seller fails to comply with any material term of the Contract.
- The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.

- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

6. **Generic**

WORLD BANK TERMS AND CONDITIONS: Special Terms and Conditions as defined by world bank at [click here](#) will also be applicable. APPLICABLE ONLY IN CASE OF WORLD BANK FUNDED PROJECTS.

7. **Turnover**

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

8. **Turnover**

OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.

9. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

10. **Certificates**

Material Test Certificate Should Be Sent Along with The Supply. The Material Will Be Checked by Buyer's Lab & the Results of the Lab will be the Sole Criteria for Acceptance of the Item.

11. **Purchase Preference (State)**

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry / State of Bid inviting authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 10 % of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 70 percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public

Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

12. **Forms of EMD and PBG**

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

Managing Director, Gujarat Medical Services Corporation Limited, Gandhinagar
payable at
Gandhinagar.

. Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

13. **Forms of EMD and PBG**

Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

Managing Director, Gujarat Medical Services Corporation Limited, Gandhinagar
Account No.
32638352973
IFSC Code
SBIN0008434
Bank Name
State Bank of India
Branch address
NSC Branch, Gandhinagar

. Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

14. **Forms of EMD and PBG**

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of

Managing Director, Gujarat Medical Services Corporation Limited
payable at
Gandhinagar

. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

15. **Forms of EMD and PBG**

Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name

Managing Director, Gujarat Medical Services Corporation Limited
Account No.
32638352973
IFSC Code
SBIN0008434
Bank Name
State Bank of India
Branch address
NSC Branch, Gandhinagar.

. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 15 days of award of contract.

16. **Certificates**

The bidder is required to upload, along with the bid, all relevant certificates such as BIS licence, type test certificate, approval certificates and other certificates as prescribed in the Product Specification given in the bid document.

17. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

Additional Terms and Conditions

1.

A) Eligibility Criteria for Earnest Money Deposit (EMD) Exemption:-

- a) Micro & small-scale enterprises which participate directly in tendering process for the product which they are manufacturing / service which they are providing and have Udyam registration for items / service under procurement and having registration with CSPO or National Small Industries Corporation.
- b) Startups which participate directly in tendering process for the product which they are manufacturing / service which they are providing and recognized by DPIIT under the Startup India Program and has obtained Udyam registration & CSPO NSIC registration as MSE.
- c) Organization which has registration certificate for the manufacturing product of the tender, from Gujarat Khadi Gramodyog Board or Khadi and Village Industries Commission (K.V.I.C) or Commissioner of Cottage Industries.
- d) Board/Corporations/PSUs of the Central/ State Government for their own manufactured items.
- e) State Government recognized organizations like (i) organizations for blinds, dumb and deaf, disabled, mentally disabled persons; (ii) women's self-help group recognized by Gujarat Livelihood Promotion Company; which participate directly in tendering process for the product which they are manufacturing / service which /they are providing.
- f) Sellers who have got their credentials verified through the process of Vendor Assessment by Vendor Assessment Agencies through GEM for the Primary Product/Primary Service for which Bid/R A floated on GEM.
- g) In keeping with GEM guidelines, OEM and service providers rendering services directly or by its own and having annual turnover of INR 500 Crore or more.
- h) In keeping with GEM guidelines, Sellers/Service Providers holding BIS license for the Primary Product Category whose credentials are validated through BIS database.

Bidder shall have to upload scanned copy of relevant valid registration document.

For enterprises, other than those mentioned under section (A), participating in the tendering process, the E.M.D. shall be submitted at the rate of 3% of the total estimated cost of the tender.

B) The benefit of Price Preference & Price matching for Small Scale Industries of Gujarat state is applicable as per Government vide GR No. SPO/102015/691093/CH dated: 03/06/2016 issued by Industries & Mines Department.

Gujarat Government Industries and Mines Department Circular for startup Unit KH.R.D-10 2018-UOR-1-CH, dated 30/04/2018.

- i. The Turnover Exemption for startup shall be applicable for micro and small startup only.
- ii. Micro and small startup are exempted from past performance criteria.
- iii. The above-mentioned start-up units will be eligible for price preference and price matching. However, the participating start-up firm must show production capacity double the tender quantity of the quoted item (200%) and submit a certificate by a competent authority to validate production capacity.

3.

The bidder must be an Indian Manufacturer or Authorized Distributor for imported item or a Subsidiary of original foreign manufacturer. Distributors of Indian OEM shall not be allowed to Participate. OEM and Distributor/subsidiary cannot participate simultaneously in the Bid.

- i. The bidder has to submit import License issued by competent authority and manufacturer authorization certificate for quoted item, if they are bidding as Authorized distributor for an imported item.

4.

A bidder who has been blacklisted or debarred by the tender-inviting authority, any other State Government, or any Central Government department/organization shall not be allowed to participate in the tender process during the period of blacklisting or debarment. The bidder must upload an undertaking to this effect along with the bid.

5. **Sample Submission:**
- i. A total of 100/96 samples of quoted product must be submitted within seven (7) working days of bid closure, along with a forwarding letter specifying the item name, bid number, batch number, and expiry date. The samples should be delivered to Gujarat Medical Services Corporation Limited, Block-14, Dr. Jivraj Mehta Bhavan, Gandhinagar, Gujarat. The submission box must contain only the sample, while the covering letter and EMD must be sent separately.
 - ii. If the samples and EMD are not physically received at GMSCL within seven (7) working days, the bidder will be liable for rejection.
6. **Regarding GEM Bid any representation received in physical or in E-mail form will not be acceptable. Reply/clarifications received through GEM portal will be considered only.**
7. **After opening of GEM bid, all participants will be given 48 hours i.e. two working days to submit deficient documents on GEM Portal. Any submission after 48 hours will not be considered.**
8. **Packing And Logograms:**
- i. **Packing:**

The packing and labels of all kits, reagents, consumables, or other items supplied under the order must be permanently and prominently printed in **both English and Gujarati** with the words: **“FOR THE USE OF GOVT. OF GUJARAT. NOT FOR SALE.” “Gujarat Sarkar na upyog mate, vechan mate nahi.” (As per attached annexure)** along with logogram. The logogram must be distinct from standard trade packaging. If the items are packed in packets that are then placed or repacked in a box, carton, sachet, bottle, or foil, these words must be permanently and prominently printed on both the internal and external packs and labels, along with the logogram. The M.R.P. or any other price must not be printed or displayed anywhere on the external pack, box, carton, foil, or internal packaging.

 - a) The item shall be supplied in the pack size as defined in specifications and the packages shall carry the logogram as specified above. The packing in each carton shall be strictly as per the specification mentioned. Failure to comply with this shall lead to non-acceptance of the goods besides imposition of penalties.
 - b) Every box should carry a large outer label clearly indicating that the product is for “Govt of Gujarat Supply-Not for Sale” with Logogram of GMSCL. The Product label on the carton should mention Kit/reagent/item name, Batch no., date of manufacturing, date of expiry, quantity packed.
 - c) The Generic name of the item should be printed in clearly legible bold letters (It is advisable that the color of font be different from other printed matter to make the name highly conspicuous).
 - d) It should be ensured that only first-hand fresh packaging material of uniform size is used for packing. All packaging must be properly sealed and temper proof.
 - e) Packing should be able to prevent damages or deterioration during transit.
 - f) In the event of items supplied found to be not as per specifications in respect of their, the stores will not accept the goods.
 - g) **In case where product being supplied does not conform to the packing standard for e.g. logo, MRP, Packing size etc.) GMSCL reserves the right to reject the goods. However if MD GMSCL is satisfied that such packing deviation is non critical in nature and does not affect the quality of the product, he may with the reason recorded in writing, accept such goods with the minimum penalty of 3 % + GST (as applicable) for each such deviation.**
 - ii. **Logograms /Markings:**

Logogram means, wherever the context occurs, the design as specified on our official website. (Use GMSCL’s logo as per our website).

9. **Shelf Life:**

- i. In case where shelf life of item is up to two years, it should not have lapsed the 1/6th of shelf life at the time of delivery. And in case where shelf life is more than two years it should not have lapsed 1/4th of Shelf life at the time of delivery.
- ii. In no case stores whose 2/6th shelf life has lapsed shall be accepted.
- iii. In case of emergency for products having expiry period 2 years or more Managing Director, GMSCL, reserves right to accept the goods after getting the written confirmation from contract holder to take back the unutilized quantity with penalty of 2% of total supply value per month which have lapsed shelf life mentioned above.
- iv. However, if the minimum shelf life at the time of delivery to the consignee is defined in the specifications then that shelf life will have to be complied.
- v. However, the Managing Director, GMSCL reserves the right to waive off penalty + GST (as applicable) if the remaining shelf life of product to be supplied is more than what has been sought in the tender document.

10. **Penalty clause :**

Back out from tender at any interim level during tender processing:

Once the tender is submitted, it will be the responsibility of the tenderer not to escape half way directly or indirectly by way of raising any problems. In case of back out from the tender process at any stage (till the finalization of tender or at any stage thereafter) following penal actions will be taken against the Firm/company.

- i. Forfeiture of EMD / Security Deposit.
- ii. Debarment of firm/company for concerned drug/item for one year.
- iii. Recovery of differential amount if risk purchase is done due to such back out.

Notwithstanding various action and penalties for non-supply and / or delayed supply of the Drugs/Medical devices/diagnostic kits/consumable. GMSCL shall take action against the supplier as follows:

- i. If the supplier fails to execute at least 70% of the ordered quantity as mentioned in a single Purchase order and such part supply for any three Purchase orders of the same drug/Medical devices/diagnostic kits/consumable, then the product of the supplier will be debarred and becomes ineligible to participate in any of the tenders for that particular item(s) by GMSCL for a period of 2 year from the date of intimation for debarment besides forfeiture of security deposit (i.e. Forfeiture of Deposit + GST as applicable) of that product(s).
- ii. Purchase orders, if any, already issued before taking any blacklisting action or orders given in past will not be affected in view of action taken as per above guidelines but all strict quality checks shall be observed for each supply of products.

11. **Debarment :**

Kindly refer the debarment policy for **Medical Devices, Kits and Reagents of GMSCL**

12. **Quality Testing :**

- i. **Sampling of supplies from each batch will be done at the point of supply or distribution/storage points for testing. (The samples would be sent to different empanelled laboratories for testing by the ordering authority after coding). The GMSCL will deduct a sum of 1% from the amount of bill payable to supplier on account of handling and testing charges.**
 - ii. Samples which do not meet quality requirements shall render the relevant batches liable to be rejected. If the sample is declared to be Not of Standard Quality or spurious or adulterated or misbranded, such batch/batches will be deemed to be rejected goods.
 - iii. **The supply of any item shall be considered complete for the purpose of calculation of liquidated damages only when reference standards/ standard testing procedure or test protocol/placebo materials are made available to the corporation along with the supply of items as per the purchase order. However, these materials and documents shall be made available by supplier to Quality Cell of GMSCL Headquarter.**
 - iv. If any item is found apparently spoilt / decayed / infected till the expiry date or in case of any complaint from G.M.S.C.L. / Direct Demanding Officers, the Contractor shall be liable to replace the unutilized quantity even if the sample is not tested.
 - v. Samples from supply made by the contract holder /supplier will be drawn by Depot Manager/ Drug Inspector of concerned warehouse of GMSCL and will be sent for testing at CDSCO approved laboratory.
 - vi. In case sample is declared as not of standard quality by CDSCO approved laboratory, the report of CDSCO approved laboratory will be considered as final and conclusive and following actions will be taken considering the report issued by CDSCO approved laboratory.
 - (A) The batch declared as not of standard quality shall have to be replaced by the contract holder within 30 days from the date of receipt of replacement notice issued by the GMSCL. Failure to replace the substandard material/batch will invite recovery of an amount equivalent to the cost of not of standard material/batch.
 - (B) The contract holder/ supplier will be debarred as per debarment policy of GMSCL.
 - (C) The substandard material / batch will not be given back to contract holder / supplier, and same will be seized and handed over to FDCA for disposal/destruction.
- Note: The above process and actions will also be taken in case of statutory testing (as per provisions of Drugs and Cosmetics Act)**
- vii. Neither, claim for relaxation of replacement period nor for return of goods declared to be not of standard quality nor any request for acceptance of the replacement goods delayed after the delivery period (of 4 weeks), due to any reason whatsoever, will be entertained.

13.

Liquidated Damages:

If The Seller/Service Provider Fails To Deliver Any Or All Of The Goods/Services Within The Original/Re-Fixed Delivery Period(S) Specified In The Contract, The Buyer Will Be Entitled To Deduct/Recover The Liquidated Damages For The Delay, Unless Covered Under Force Majeure Conditions Aforesaid, @ 0.5% Of The Contract Value Of Delayed Quantity Per Week Or Part Of The Week Of Delayed Period, Until Actual Delivery Or Performance, As Pre-Estimated Damages Not Exceeding 5% Of The Total Contract Value Without Any Controversy/Dispute Of Any Sort Whatsoever. However, In Case Of Inordinate Delay Maximum Deduction Shall Be 10 % Of The Total Contract Value.

Note: Inexcusable delays of more than one-fourth (25%) of the completion period specified in the contract shall be treated as inordinate delay(s).

14.

Jurisdiction:

The Jurisdiction of any dispute will be Gandhinagar or Ahmedabad.

15. **Payment:** Payment process will be after receiving Kits/Reagents within stipulated time as per staggered delivery with invoice and satisfactory report from consignee.

18. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The additional terms and conditions have been incorporated by the Buyer after approval of the Competent Authority in Buyer Organization, whereby Buyer organization is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any eccentricity / restriction arising in the bidding process due to these ATCs and due to modification of technical specifications and / or terms and conditions governing the bid. If any clause(s) is / are incorporated by the Buyer regarding following, the bid and resultant contracts shall be treated as null and void and such bids may be cancelled by GeM at any stage of bidding process without any notice:-

1. Definition of Class I and Class II suppliers in the bid not in line with the extant Order / Office Memorandum issued by DPIIT in this regard.
2. Seeking EMD submission from bidder(s), including via Additional Terms & Conditions, in contravention to exemption provided to such sellers under GeM GTC.
3. Publishing Custom / BOQ bids for items for which regular GeM categories are available without any Category item bunched with it.
4. Creating BoQ bid for single item.
5. Mentioning specific Brand or Make or Model or Manufacturer or Dealer name.
6. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
7. Floating / creation of work contracts as Custom Bids in Services.
8. Seeking sample with bid or approval of samples during bid evaluation process. (However, in bids for [attached categories](#), trials are allowed as per approved procurement policy of the buyer nodal Ministries)
9. Mandating foreign / international certifications even in case of existence of Indian Standards without specifying equivalent Indian Certification / standards.
10. Seeking experience from specific organization / department / institute only or from foreign / export experience.
11. Creating bid for items from irrelevant categories.
12. Incorporating any clause against the MSME policy and Preference to Make in India Policy.
13. Reference of conditions published on any external site or reference to external documents/clauses.
14. Asking for any Tender fee / Bid Participation fee / Auction fee in case of Bids / Forward Auction, as the case may be.
15. Buyer added ATC Clauses which are in contravention of clauses defined by buyer in system generated bid template as indicated above in the Bid Details section, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by GeM GTC.
16. In a category based bid, adding additional items, through buyer added additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogs or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller within 4 days of bid publication on GeM. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में

भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---